

बिड दस्तावेज़ / Bid Document

बिड विवरण / Bid Details	
बिड बंद होने की तारीख/समय / Bid End Date/Time	31-07-2026 13:00:00
बिड खुलने की तारीख/समय / Bid Opening Date/Time	31-07-2026 13:30:00
बिड पेशकश वैधता (बंद होने की तारीख से) / Bid Offer Validity (From End Date)	120 (Days)
मंत्रालय/राज्य का नाम / Ministry/State Name	Pmo
विभाग का नाम / Department Name	Department Of Atomic Energy
संगठन का नाम / Organisation Name	Institute For Plasma Research
कार्यालय का नाम / Office Name	West Zone
शिकायत निवारण के संपर्क विवरण / Contact details of Grievance redressal	HOD Email id : gem.hod@ipr.res.in Buyer Email id: nitin.chataule@ipr.res.in
कुल मात्रा / Total Quantity	325000
वस्तु श्रेणी / Item Category	Liquid Nitrogen (In Kg) (Q3)
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़ / Document required from seller	Certificate (Requested in ATC), OEM Authorization Certificate, Additional Doc 1 (Requested in ATC), Compliance of BoQ specification and supporting document *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेज़ों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है / Do you want to show documents uploaded by bidders to all bidders participated in bid?	Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in)
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या / Minimum number of bids required to disable automatic bid extension	3

बिड विवरण/Bid Details	
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	7
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	3
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	Yes
रिवर्स नीलामी योग्यता नियम/RA Qualification Rule	H1-Highest Priced Bid Elimination
बिड का प्रकार/Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	7 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईएमडी राशि/EMD Amount	82875

ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईपीबीजी प्रतिशत (%) /ePBG Percentage(%)	5.00
ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).	14

(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित कैटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज प्रस्तुत करने है। एमएसई कैटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

(c). ईएमडी और संपादन जमानत राशि लाभार्थी के पक्ष में होनी चाहिए। / Earnest Money Deposit (EMD) shall also be accepted by the buyer in the form of a surety bond.

लाभार्थी /Beneficiary :

DIRECTOR, INSTITUTE FOR PLASMA RESEARCH
NEAR INDIRA BRIDGE, BHAT, GANDHINAGAR 382428
(Institute For Plasma Research)

विभाजन/Splitting

विभाजन/Splitting Applied	Yes
बोलीदाताओं की अधिकतम संख्या, जिनके बीच ऑर्डर विभाजित किया जा सकता है। / Maximum No. Of Bidders Amongst Which Order May Be Split	2
विभाजन मानदंड इस बात पर आधारित है कि कौन सी क्वांटिटी को वितरित किया जाएगा / Split Criteria based on which quantity will be distributed	a) Scenario 1: In case there are more than 1 techno-commercial acceptable offers, Order shall splits with 2 suppliers as per following: i. 60% quantity of the tender/bid will be placed with L-1 bidder. ii. 40% quantity of the tender/bid will be placed with L-2 bidder Note: The placement of contract with L-2 is subject to acceptance of L-1 rate. In case L-2 bidder does not agree to match L1 rate, then L-3 and so on bidders shall be asked to match L-1 rate. b) Scenario 2: In case there is only 1 (one) techno-commercial acceptable offer, the order shall be placed to them.

एमआईआई खरीद वरीयता/MII Purchase Preference

एमआईआई खरीद वरीयता/MII Purchase Preference	No
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एमआईआई के लिए सक्षम प्राधिकारी का विवरण:/Details of the Competent Authority for MII

सक्षम प्राधिकारी का नाम/Name of Competent Authority	Additional Secretary
सक्षम प्राधिकारी का पदनाम/Designation of Competent Authority	Additional Secretary
सक्षम प्राधिकारी का कार्यालय/विभाग/प्रभाग/Office / Department / Division of Competent Authority	PPD. DPIIT. Ministry of commerce and industries
सीए अनुमोदन संख्या/CA Approval Number	No. P-45021/2/2017-PP (BE-II)- Part (4) Vol II
सक्षम प्राधिकारी अनुमोदन तिथि/Competent Authority Approval Date	08-07-2025
सक्षम प्राधिकारी द्वारा प्रदान की गई स्वीकृति का संक्षिप्त विवरण/Brief Description of the Approval Granted by Competent Authority	Public procurement (Preference to MII) under 2017-Revision exemption limit for procurement of scientific and research institutions

Competent Authority Approval for not opting Make In India Preference : [View Document](#)

एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
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सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	25

1. Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within $L-1+ 15\%$ (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 25% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

3. Reverse Auction would be conducted amongst all the technically qualified bidders except the Highest quoting bidder. The technically qualified Highest Quoting bidder will not be allowed to participate in RA. However, H-1 will also be allowed to participate in RA in following cases:

- If number of technically qualified bidders are only 2 or 3.
- If Buyer has chosen to split the bid amongst N sellers, and H1 bid is coming within N.
- In case Primary product of only one OEM is left in contention for participation in RA on elimination of H-1.
- If L-1 is non-MSE and H-1 is eligible MSE and H-1 price is coming within price band of 15% of Non-MSE L-1
- If L-1 is non-MII and H-1 is eligible MII and H-1 price is coming within price band of 20% of Non-MII L-1

Liquid Nitrogen (In Kg) (325000 kilogram)

तकनीकी विशिष्टियाँ /Technical Specifications

[* जेम कैटेगरी विशिष्टि के अनुसार / As per GeM Category Specification](#)

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
Requirements	Form of Supply	Liquid
	Purity	99.99%

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
	Oxygen Content	< 3 ppm
	Moisture Content	< 2 ppm
Packing & Marking	Mode of Supply	Tank

Additional Specification Parameters - Liquid Nitrogen (In Kg) (325000 kilogram)

Specification Parameter Name	Bid Requirement (Allowed Values)
Tanker pressure, kg/cm2	2.5 to 10

* Bidders offering must also comply with the additional specification parameters mentioned above.

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Yogesh Dadheech	382428,BHAT, NEAR INDIRA BRIDGE, GANDHINAGAR	325000	365

Special terms and conditions-Version:1 effective from 23-07-2025 for category Liquid Nitrogen (In Kg)

- The Petroleum and Explosives Safety Organisation (PESO), the nodal agency for regulating hazardous substances, has formulated the Static and Mobile Pressure Vessels (Unfired) Rules, 2016, to ensure the safe storage, handling, filling, and transportation of compressed gases and cryogenic liquids in both stationary and mobile pressure vessels.

The PESO Guidelines are to be followed by the buyer and seller/vendor/bidder. Latest modifications ordered by the CIE, PESO, DPIIT, MoC&I, Gol may be checked from time to time in this regard and compliance is to be ensured.

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. **Scope of Supply**

Scope of supply (Bid price to include all cost components) : Only supply of Goods

3. **Generic**

Bidders are advised to check applicable GST on their own before quoting. Buyer will not take any responsibility in this regards. GST reimbursement will be as per actuals or as per applicable rates (whichever is lower), subject to the maximum of quoted GST %.

4. **Generic**

Without prejudice to Buyer's right to price adjustment by way of discount or any other right or remedy available to Buyer, Buyer may terminate the Contract or any part thereof by a written notice to the Seller, if:

- i) The Seller fails to comply with any material term of the Contract.
- ii) The Seller informs Buyer of its inability to deliver the Material(s) or any part thereof within the stipulated Delivery Period or such inability otherwise becomes apparent.
- iii) The Seller fails to deliver the Material(s) or any part thereof within the stipulated Delivery Period and/or to replace/rectify any rejected or defective Material(s) promptly.
- iv) The Seller becomes bankrupt or goes into liquidation.
- v) The Seller makes a general assignment for the benefit of creditors.
- vi) A receiver is appointed for any substantial property owned by the Seller.
- vii) The Seller has misrepresented to Buyer, acting on which misrepresentation Buyer has placed the Purchase Order on the Seller.

5. **Certificates**

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

6. **Forms of EMD and PBG**

Bidders can also submit the EMD with Account Payee Demand Draft in favour of

INSTITUTE FOR PLASMA RESEARCH
payable at
GANDHINAGAR

Bidder has to upload scanned copy / proof of the DD along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date / Bid Opening date.

7. **Forms of EMD and PBG**

Bidders can also submit the EMD with Banker's Cheque in favour of

INSTITUTE FOR PLASMA RESEARCH
payable at
GANDHINAGAR

Bidder has to upload scanned copy / proof of the BC along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date / Bid Opening date.

8. **Forms of EMD and PBG**

Bidders can also submit the EMD with Payment online through RTGS / internet banking in Beneficiary name

INSTITUTE FOR PLASMA RESEARCH
Account No.
30185519770
IFSC Code
SBIN0010864
Bank Name

STATE BANK OF INDIA
Branch address
NEAR INDIRA BRIDGE, BHAT, GANDHINAGAR - 382428 (GUJARAT)

. Bidder to indicate bid number and name of bidding entity in the transaction details field at the time of on-line transfer. Bidder has to upload scanned copy / proof of the Online Payment Transfer along with bid.

9. Forms of EMD and PBG

Successful Bidder can submit the Performance Security in the form of Account Payee Demand Draft also (besides PBG which is allowed as per GeM GTC). DD should be made in favour of

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payable at
GANDHINAGAR

. After award of contract, Successful Bidder can upload scanned copy of the DD in place of PBG and has to ensure delivery of hard copy to the original DD to the Buyer within 15 days of award of contract.

10. Forms of EMD and PBG

Successful Bidder can submit the Performance Security in the form of Fixed Deposit Receipt also (besides PBG which is allowed as per GeM GTC). FDR should be made out or pledged in the name of

INSTITUTE FOR PLASMA RESEARCH
A/C (Name of the Seller). The bank should certify on it that the deposit can be withdrawn only on the demand or with the sanction of the pledgee. For release of Security Deposit, the FDR will be released in favour of bidder by the Buyer after making endorsement on the back of the FDR duly signed and stamped along with covering letter. Successful Bidder has to upload scanned copy of the FDR document in place of PBG and has to ensure delivery of hard copy of Original FDR to the Buyer within 15 days of award of contract.

11. Forms of EMD and PBG

Successful Bidder can submit the Performance Security in the form of Payment online through RTGS / internet banking also (besides PBG which is allowed as per GeM GTC). On-line payment shall be in Beneficiary name

INSTITUTE FOR PLASMA RESEARCH
Account No.
30185519770
IFSC Code
SBIN0010864
Bank Name
STATE BANK OF INDIA
Branch address

NEAR INDIRA BRIDGE, BHAT, GANDHINAGAR - 382428 (GUJARAT)

. Successful Bidder to indicate Contract number and name of Seller entity in the transaction details field at the time of on-line transfer. Bidder has to upload scanned copy / proof of the Online Payment Transfer in place of PBG within 15 days of award of contract.

12. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

1. ELIGIBILITY CRITERIA

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Sr.No	Eligibility criteria	Supportive document
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(a)	The bidder/Original Manufacturer should have executed at least one order/contract for the supply of Liquid Nitrogen $\geq$ 13,000 kilograms of Liquid Nitrogen in a single day with a minimum contract duration for a period of 12 months or above during last 5 years from the date of publication of this bid/tender.	Copy of the PO/Contract and invoice for the supplied quantity of Liquid Nitrogen $\geq$ 13,000 kilograms of Liquid Nitrogen in a single day.
(b)	The bidder should have minimum 4 nos. of Liquid Nitrogen tankers each having transportation capacity approximately 8,000 kilograms of Liquid Nitrogen or more of with valid PESO Certificate.	List of Liquid Nitrogen road tankers specifying the transportation capacity of each tanker along with valid PESO certification

2. Inspection:

Nominated Inspection Agency: On behalf of the Buyer organization, any one of the following Inspection Agency would be conducting inspection of stores before acceptance:

Pre-dispatch Inspection at Seller Premises: Not Applicable

Post Receipt Inspection at consignee site before acceptance of stores: As per Bid Specific Additional Terms and conditions.

3. (i) If the bidder is the Original Manufacturer, documentary evidence establishing its status as manufacturer of Liquid Nitrogen shall be submitted.

(ii) Manufacturer Authorization: Wherever Authorised Distributors/service providers are submitting the bid, Authorisation Form /Certificate with OEM/Original Service Provider details such as name, designation, address, e-mail Id and Phone No. required to be furnished along with the bid. This must be a valid authorization certificate issued by the Original Manufacturer, valid for the entire tenure of the contract.

4. Earnest Money Deposit (EMD): The EMD in original shall be sent to "Head-Purchase Section, Institute for Plasma Research, Bhat, Near Indira Bridge, Gandhinagar-382428" in a sealed envelope super scribing boldly Bid Number and Due date, so as to reach within the stipulated time.

5. IMPORTANT NOTE: SUBMISSION OF OFFER SHALL BE DEEMED ACCEPTANCE OF ALL TERMS AND CONDITIONS MENTIONED IN THE BID DOCUMENTS INCLUDING DELIVERY PERIOD, PAYMENT, EPBG, WARRANTY, GST, VALIDITY ETC. ANY DEVIATION FOUND IN UPLOADED DOCUMENTS SHALL NOT BE CONSIDERED. THE GEM GTC, STC AND ALSO ALL THE CLAUSES INCORPORATED BY THE BUYER IN ATC AND VARIOUS CORRIGENDUM OF THE BID WILL BE FINAL.

6. Bidder should upload duly filled compliance statement with actual values (do not mention yes/ok/acceptable/compliance etc. wherever possible).

Bid Specific Additional Terms and conditions

1) DELIVERY SCHEDULE:

IPR requires delivery of LN₂ in staggered manner. Quantity should be supplied as and when required basis on demand.

IPR shall inform the supplier about the demand of LN₂ 48 hours in advance through an email. Supplier should supply the demand quantity within 48 Hours from the time of intimation/information. Demand shall have the following information.

- Contract number and date.
- Required quantity.
- Proposed delivery period.

3,25,000 kilograms of LN₂ is required within the period of 365 days on contract basis from the date of PO or till execution of total quantity. However, in the event of any inevitable circumstances and/or technical reasons, IPR reserves the right to either refuse delivery of the total ordered quantity or accept delivery of partial quantity. Payment will be made only for the quantity delivered within the PO/Contract period.

The delivery schedule shall be as under:

- a) Supplier should be able to supply 8,000 to 13,000 kilograms of LN₂ on any working day during the contract period (as per IPR intimation). IPR shall accept LN₂ between 09.00 -16.30 hours a day.

Supply should be made only after getting intimation from IPR user department. Dispatch details such as Lorry/Tanker No., quantity, expected time of arrival at IPR may be sent to the Stores-in-charge by email (stores@ipr.res.in) / srikanth@ipr.res.in / Fax No.079-239692277 or telephone (079-239692260 / 239692262/ 23964169/23962207).

The supplier shall present the following documents at the time of delivery of LN₂

- (a) Purity certificate indicating the amount of impurities (Maximum allowable impurities: 100 ppm) present in the LN₂ supplied as measured using calibrated instrument shall be provided with each supply of Liquid Nitrogen tanker. Supplier shall also provide the breakup of impurities present in the LN₂ supplied. The supplier shall provide a copy of the valid calibration certificate for the instrument used to measure the amount of impurities present in the LN₂, as and when demanded by the buyer.
- (b) Delivery challan.
- (c) Gross weighing slip of tanker (2 copies) from government certified Weigh Bridge nearby to IPR (one copy will be kept at IPR). Weighing charges shall be borne by the supplier. IPR personnel shall have right to witness/verify weightment as and when needed.

Final acceptance shall be given only after verification of the above i.e. a,b,c. at IPR.

2) DELIVERY POINT:

The Liquid Nitrogen shall be delivered by the supplier at IPR premises in supplier's own tankers.

3) TRANSFER OF LN₂ AND PROVIDING TRANSFER DEVICE AT IPR PREMISES BY SUPPLIER:

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- a) Transfer line of standard suitable length along with all matching couplers/flanges etc. compatible with IPR storage tanks for decanting LN₂ from Supplier's tanker to IPR tanks shall be provided by the supplier. Details of LN₂ inlet point and LN₂ tanks capacity at IPR are as given in **Appendix-1**. It shall be supplier responsibility to ensure every supply tanker carries required decanting hoses with compatible connections.
- b) The tankers deployed by the vendors should have vacuum insulation. Tankers found with external surface frosted shall not be allowed to enter IPR premises. The Road tanker's pressure shall be maintained below the Maximum Allowable Working Pressure (MAWP) of filling tank during the decantation.
- c) The transportation tankers should be mounted with pressure gauges, level meter, vaporizer, required check valves and safety devices anti-tow away system etc. in working condition. All tankers deployed should have required category of valid insurance, vehicle fitness certificate, PUC etc. as per MORTH.

4) MEASUREMENT:

The quantity of Liquid Nitrogen (LN₂) delivered in each supply shall be duly acknowledged and accounted for as follows:

- The weight of the transport vehicle shall be recorded before and after the decanting of Liquid Nitrogen.

- The difference in weight (in kilograms) between the pre-delivery and post-delivery weighments shall be treated as the net quantity of Liquid Nitrogen delivered.

- Both weighments shall be conducted at a government-certified weighbridge located in proximity to the IPR premises.

- This measured weight shall serve as the basis for determining the delivered quantity.

5) BILLS/INVOICES: The bills/invoices of LN₂ supply shall be submitted against each supply to our Stores section. The supplier shall present the following documents for claiming payment

The bills/invoices of LN₂ supply shall be:

a) **Original Invoice and Weighing Slip**

The invoice must indicate:

- Quantity delivered (in kg)
- Unit rate and total amount
- Purchase Order number and date
- Delivery Challan reference

b) **Basis of Invoice**

- The invoice shall be strictly on a kilogram basis. No other unit of measurement shall be accepted for invoicing or payment.

c) **Delivery Challan**

d) **Other Dispatch Documents**, if any

6) INSPECTION AND ACCEPTANCE TESTS:

Inspection shall be carried out by the supplier in respect of purity of Liquid Nitrogen at his premises and the inspection report shall accompany the supply. The purchaser shall have the right to verify the inspection done by the supplier at his premises. The supplier shall provide all the facilities required for such verification of inspection to the inspector of the Purchaser, free of cost. In case verification of inspection is carried out by the Purchaser at the premises of the supplier prior to dispatch of Liquid Nitrogen, an inspection certificate duly signed by the Inspector of Purchaser shall be given to the supplier. Purchaser reserves the right to inspect the products supplied after its receipt at its premises.

7) RETENTION PERIOD:

Maximum retention time for the tanker is 24 hours from the time of reporting at IPR site.

8) SAFETY MEASURES :

Proper and protective safety measures for handling Liquid Nitrogen at IPR site is the responsibility of the supplier. Purchaser will not be responsible for any accidents occurred during transfer of Liquid Nitrogen. All other safety precautions for the transport tankers should be as per PESO rules and safety guidelines of Government of India. All tanks must carry valid PESO certification documents and shall be produced to IPR personnel as and when demanded. During movement of transport tanker inside IPR campus, safe movement

nt of tanker shall be responsibility of the Supplier and in case of damage to any IPR installation/accident, compensation decided by competent authority of IPR shall have to be paid/borne/repaid by the supplier.

9) SUB CONTRACTS :

Supplier shall not, in any circumstances, sub-contract supply of LN₂ to any party without prior written approval of the Purchaser. The Purchaser shall not refuse to grant approval for the placement of sub-contracts if these sub-contracts according to the opinion of the Purchaser are capable to supply the required LN₂ as per the specifications mentioned in the Purchase Order. However, Supplier shall be responsible for the proper execution of any sub-contract placed by him in connection with this contract.

10) LIQUIDATED DAMAGES:

Non-performance:

Supplies made after 48 hours from the receipt of information/intimation from IPR shall be subject to non-performance deduction. Clause is applicable for delayed supplies beyond 48 hours and deduction shall be calculated on value of respective Consignment for which the supplier failed to deliver. IPR will recover agreed amount not by way of penalty, equivalent to an amount of ½ % (0.5%) of value of consignment per every two hour of delay or part thereof subject to maximum of 10% of the value of consignment.

11) PENALTY:

Supplier should supply the material as per the despatch instruction received from IPR. Supplier should ensure the delivery as per the ordered quantity. If the supplied quantity is less than 80% of the informed/intimated quantity, it shall attract Penalty of 5% of value of consignment for each instance.

Appendix-1

Details of LN₂ inlet point at IPR:

- 1) ANSI B16.5 Class 300 Flange, Nominal size: 1 ½ inch

Details of LN₂ tanks at IPR:

Total No of LN₂ tanks: Three (03)

Capacity of each tank: 35,000 litres

MAWP of each tank: 2.75 kg/cm²

PESO Licence validity date: 30th September, 2028

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel

the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate

action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्यवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---